

they never filed (even to date) any opposition to the motion to compel arbitration.

“Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is, therefore, not excusable. To hold otherwise would be to eliminate the express statutory requirement of excusability and effectively eviscerate the concept of attorney malpractice.” (*Toho-Towa Co., Ltd. v. Morgan Creek Productions, Inc.* (2013) 217 Cal.App.4th 1096, 1112, quoting *Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 258.)

Plaintiffs’ counsel’s failure to timely file an opposition, failure to determine if the stipulation was granted and, if so, what date the new hearing was set for all fall below the professional standard of care. The “law is clear that attorney conduct falling below the professional standard of care is not excusable.” (*Jackson v. Kaiser Foundation Hospitals, Inc.* (2019) 32 Cal.App.5th 166, 174 citing *Zamora*, 28 Cal.4th at 258.)

The above provides another reason as to why Plaintiffs motions should be denied.

Conclusion

Plaintiffs’ Motion to Defendant’s Motion to Set Aside Order Compelling Arbitration is **denied**.

Finally, the Court must observe that with arbitration having been ordered in early May, compliance with that order should have resulted in arbitration proceedings being commenced by June at the latest. It does not appear that either side has moved to make that happen. Such a failure to proceed with arbitration may form the ground for further relief of some kind, but no such action is taken at this time.

5. 9:00 AM CASE NUMBER: C24-03078

CASE NAME: THALBIR OLI VS. GOVIND SHAHI

HEARING ON DEMURRER TO: CROSS COMPLAINT

FILED BY: OLI, THALBIR

TENTATIVE RULING:

This case is a dispute between the two partners and owners of a now-failed bar business, with related parties also involved. The case is on calendar for the demurrer and motion to strike filed by plaintiffs/cross-defendants against the cross-complaint of defendant/cross-complainant Sushovan Shahi. No oppositions to the present demurrer and motion to strike have been filed. Instead, cross-complainant Shahi filed a first amended cross-complaint (adding the corporation as a cross-complainant). No answer or response to the amended cross-complaint has been filed yet. Thus, the present demurrer and motion are **moot**, at least for now.

In the meantime, however, defendants have also filed a demurrer and motion to strike against plaintiffs’ original complaint. Those are set for hearing on February 6.

While we haven’t seen a demurrer to the first amended cross-complaint yet, however, it appears likely that one will be filed, and that its substance will overlap strongly with the issues presented by

the present defendants' demurrer. Loosely speaking, the two pleadings in this case are largely mirror images of each other, as are the attacks made by the two competing demurrers. It thus appears that at least to a large extent, each side is being systematically inconsistent in its own filings, with arguments in demurrers that would apply equally well to the demurring parties' own complaint or cross-complaint.

The Court accordingly **continues** the upcoming hearing date of February 6 to May 16, 2026, so that if a demurrer to the first amended cross-complaint is filed (as seems likely), the two demurrers can be heard together. If such a demurrer (and/or motion to strike) is filed, it should be set for hearing on the same date.

In the meantime, the Court is of the view that both sides need to see to the consistency of their respective positions. It will not do for a party to plead a cause of action in his or her own complaint, while simultaneously making legal arguments in his or her demurrer that would be equally fatal to the party's own claims. The attorneys are therefore directed to meet and confer as to the legal viability of all of the various claims made in both directions, with a view to a stipulation either to drop nonviable claims, or to drop nonviable demurrers, or some of both. And if the attorneys cannot reach agreement, then each side must file and serve a statement by April 18, explaining how its own attacks on the other side's claims can be squared consistently with its own pleaded claims.

6. 9:00 AM CASE NUMBER: C24-03078
CASE NAME: THALBIR OLI VS. GOVIND SHAHI
***HEARING ON MOTION IN RE: STRIKE CROSS COMPLAINT**
FILED BY: OLI, THALBIR
TENTATIVE RULING:

See line 5.

7. 9:00 AM CASE NUMBER: C25-00444
CASE NAME: KYANI-DEVAREU HARRIS VS. COUNTY OF CONTRA COSTA COURT
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: COUNTY OF CONTRA COSTA
TENTATIVE RULING:

Department 309 (Judge Treat) recuses himself from this case in light of the point that the Court itself is a named defendant in the case. The demurrer is taken **off calendar**, and the case is referred to the Presiding Judge for consideration of a full-bench recusal.